

Development Consent

Section 4.38 of the *Environmental Planning and Assessment Act 1979*

As delegate of the Minister for Planning and Public Spaces under delegation executed on 9 March 2022, I approve the Development Application referred to in Schedule 1, subject to the conditions specified in Schedule 2.

These conditions are required to:

- prevent, minimise, or offset adverse environmental impacts;
- set standards and performance measures for acceptable environmental performance;
- require regular monitoring and reporting; and
- provide for the ongoing environmental management of the development



Chris Ritchie
Director
Industry Assessments

Sydney

15 September 2023

SCHEDULE 1

Application Number:	SSD-41589232
Applicant:	EMKC Cubed Management Pty Ltd
Consent Authority:	Minister for Planning and Public Spaces
Site:	51 Huntingwood Drive, Huntingwood NSW 2148 Lot 1 DP 857249
Development:	Construction and operation of a Data Centre with an operational capacity of 400 Megawatts (MW) including back-up power and cooling systems, diesel and lithium-ion battery storage, associated infrastructure, car parking and landscaping as well as demolition of existing structures and bulk earthworks.

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DEFINITIONS

Applicant	EMKC Cubed Management Pty Ltd, or any person carrying out any development to which this consent applies
BCA	Building Code of Australia
BC Act	<i>Biodiversity Conservation Act 2016</i>
Carrier	Operator of a telecommunication network and/ or associated infrastructure, as defined in section 7 of the <i>Telecommunications Act 1997</i> (Cth)
Certifier	A council or an accredited certifier (including principal certifiers) who is authorised under section 6.5 of the EP&A Act to issue Part 6 certificates
CEMP	Construction Environmental Management Plan
Conditions of this consent	Conditions contained in Schedule 2 of this document
Construction	The demolition and removal of buildings or works, the carrying out of works for the purpose of the development, including bulk earthworks, and erection of buildings and other infrastructure permitted by this consent
Council	Blacktown City Council
Day	The period from 7 am to 6 pm on Monday to Saturday, and 8 am to 6 pm on Sundays and Public Holidays
Demolition	The deconstruction and removal of buildings, sheds and other structures on the site
Department	NSW Department of Planning and Environment (DPE)
Development	The development described in Schedule 1, the EIS and Response to Submissions, including the works and activities comprising the construction and operation of a data centre and ancillary infrastructure, as modified by the conditions of this consent
Development layout	The plans at Appendix 1 of this consent
Earthworks	Bulk earthworks, site levelling, import and compaction of fill material, excavation for installation of drainage and services, to prepare the site for construction
E&H Group	Environment and Heritage Group of the Department
EIS	The Environmental Impact Statement titled <i>Proposed Data Centre – 51 Huntingwood Drive, Huntingwood Lot 1 DP 857249</i> , prepared by Willowtree Planning Pty Ltd dated 30 September 2022, submitted with the application for consent for the development
Emergency operations	The use of the data centre expansion (for the collection, storage, processing and/or distribution of electronic data), associated office space and site infrastructure during a power outage event
ENM	Excavated Natural Material
Environment	As defined in section 1.4 of the EP&A Act
EPA	NSW Environment Protection Authority
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	Environmental Planning and Assessment Regulation 2021
EPL	Environment Protection Licence under the POEO Act
Evening	The period from 6 pm to 10 pm
Fibre-ready facility	As defined in section 372W of the <i>Telecommunications Act 1997</i> (Cth)
FRNS	Fire and Rescue NSW
FSS	Fire Safety Study
Heritage	Encompasses both Aboriginal and historic heritage including sites that predate European settlement, and a shared history since European settlement
Heritage item	An item as defined under the <i>Heritage Act 1977</i> , and assessed as being of local, State and/ or National heritage significance, and/or an Aboriginal Object or Aboriginal Place as defined under the <i>National Parks and Wildlife Act 1974</i> , the World Heritage List, or the National Heritage List or Commonwealth Heritage List under the <i>Environment Protection and Biodiversity Conservation Act 1999</i> (Cth), or anything identified as a heritage item under the conditions of this consent
Incident	An occurrence or set of circumstances that causes or threatens to cause material harm and which may or may not be or cause a non-compliance Note: “material harm” is defined in this consent

Land	Has the same meaning as the definition of the term in section 1.4 of the EP&A Act
Load Curtailment	Means the use of the back-up generator system to reduce the development's use of electricity from the National Electricity Market, and does not include instances where load shedding is initiated by the Australian Energy Market Operator in accordance with the National Electricity Rules
Material harm	Is harm that: a) involves actual or potential harm to the health or safety of human beings or to the environment that is not trivial, or b) results in actual or potential loss or property damage of an amount, or amounts in aggregate, exceeding \$10,000, (such loss includes the reasonable costs and expenses that would be incurred in taking all reasonable and practicable measures to prevent, mitigate or make good harm to the environment)
Minister	NSW Minister for Planning (or delegate)
Mitigation	Activities associated with reducing the impacts of the development prior to or during those impacts occurring
Night	The period from 10 pm to 7 am on Monday to Saturday, and 10 pm to 8 am on Sundays and Public Holidays
Non-compliance	An occurrence, set of circumstances or development that is a breach of this consent
OEMP	Operational Environmental Management Plan
Operation	The use of a data centre as described in the EIS and RTS and as modified by the conditions of this consent
Planning Secretary	Secretary of the Department, or delegate
POEO Act	<i>Protection of the Environment Operations Act 1997</i>
Reasonable	Means applying judgement in arriving at a decision, taking into account: mitigation benefits, costs of mitigation versus benefits provided, community views, and the nature and extent of potential improvements
Response to Submissions (RTS)	The Applicant's response to issues raised in submissions received in relation to the application for consent for the development under the EP&A Act and includes the document titled <i>Submissions Report: Proposed Data Centre</i> , prepared by Willowtree Planning Pty Ltd and dated 28 April 2023 and Additional Response to Submissions prepared by Willowtree Planning Pty Ltd dated 27 July 2023 and DA drawing set submitted on 5 September 2023
Sensitive receivers	A location where people are likely to work, occupy or reside, including a dwelling, school, hospital, office or public recreational area
Site	The land defined in Schedule 1 of this consent
VENM	Virgin Excavated Natural Material
Waste	Has the same meaning as the definition of the term in the Dictionary to the POEO Act
Year	A period of 12 consecutive months

SCHEDULE 2

PART A ADMINISTRATIVE CONDITIONS

OBLIGATION TO MINIMISE HARM TO THE ENVIRONMENT

- A1. In addition to meeting the specific performance measures and criteria in this consent, all reasonable and feasible measures must be implemented to prevent, and if prevention is not reasonable and feasible, minimise any material harm to the environment that may result from the construction and operation of the development, and any rehabilitation required under this consent.

TERMS OF CONSENT

- A2. The development may only be carried out:
- (a) in compliance with the conditions of this consent;
 - (b) in accordance with all written directions of the Planning Secretary;
 - (c) in accordance with the EIS and Response to Submissions;
 - (d) in accordance with the Development Layout in Appendix 1; and
 - (e) in accordance with the management and mitigation measures in Appendix 2.
- A3. Consistent with the requirements in this consent, the Planning Secretary may make written directions to the Applicant in relation to:
- (a) the content of any strategy, study, system, plan, program, review, audit, notification, report or correspondence submitted under or otherwise made in relation to this consent, including those that are required to be, and have been, approved by the Planning Secretary; and
 - (b) the implementation of any actions or measures contained in any such document referred to in condition A3(a).
- A4. The conditions of this consent and directions of the Planning Secretary prevail to the extent of any inconsistency, ambiguity or conflict between them and a document listed in condition A2(c) or A2(e). In the event of an inconsistency, ambiguity or conflict between any of the documents listed in condition A2(c) or A2(e), the most recent document prevails to the extent of the inconsistency, ambiguity or conflict.

LIMITS OF CONSENT

Lapsing

- A5. This consent lapses five years after the date from which it operates, unless the development has physically commenced on the land to which the consent applies before that date.

Back-up Generator System

- A6. The Applicant must install, maintain and operate an uninterruptable power supply (UPS) system, including back-up batteries, which are capable of powering critical components of the development for a period of not less than three (3) minutes, or a time period otherwise agreed with the Planning Secretary.
- A7. The Applicant must ensure that the back-up generators installed and operated under this consent do not exceed a total installed generating capacity of 632 megawatts.
- A8. The Applicant must ensure:
- (a) operation of the back-up generators (including testing) does not exceed 200 hours per year; and
 - (b) no more than three (3) generators are tested at any one time; and
 - (c) only one generator per generator bank for each test such that the three (3) generators being tested are located on opposite sides of the building and/or distal from each other.

Note: For the purposes of condition A8, calculation of how many hours the back-up generators are tested, as a collective, should be based on the hours (in real time) that testing is in fact undertaken at the site per year. For example, five generators being tested concurrently over the course of an hour would count as one hour towards the threshold stipulated by condition A6, rather than five hours.

- A9. This development consent does not permit the use of the back-up generators:
- (a) for the purpose of generating electricity to be distributed by the National Electricity Market; or
 - (b) to support load curtailment at the site.

NOTIFICATION OF COMMENCEMENT

- A10. The date of commencement of each of the following phases of the development must be notified to the Planning Secretary in writing, at least one month before that date, or as otherwise agreed with the Planning Secretary:
- (a) construction;
 - (b) operation; and
 - (c) cessation of operations.
- A11. If the construction or operation of the development is to be staged, the Planning Secretary must be notified in writing, at least one month before the commencement of each stage (or other timeframe agreed with the Planning Secretary), of the date of commencement and the development to be carried out in that stage.

EVIDENCE OF CONSULTATION

- A12. Where conditions of this consent require consultation with an identified party, the Applicant must:
- (a) consult with the relevant party prior to submitting the subject document to the Planning Secretary for approval; and
 - (b) provide details of the consultation undertaken including:
 - (i) the outcome of that consultation, matters resolved and unresolved; and
 - (ii) details of any disagreement remaining between the party consulted and the Applicant and how the Applicant has addressed the matters not resolved.

STAGING, COMBINING AND UPDATING STRATEGIES, PLANS OR PROGRAMS

- A13. With the approval of the Planning Secretary, the Applicant may:
- (a) prepare and submit any strategy, plan or program required by this consent on a staged basis (if a clear description is provided as to the specific stage and scope of the development to which the strategy, plan or program applies, the relationship of the stage to any future stages and the trigger for updating the strategy, plan or program);
 - (b) combine any strategy, plan or program required by this consent (if a clear relationship is demonstrated between the strategies, plans or programs that are proposed to be combined); and
 - (c) update any strategy, plan or program required by this consent (to ensure the strategies, plans and programs required under this consent are updated on a regular basis and incorporate additional measures or amendments to improve the environmental performance of the development).
- A14. If the Planning Secretary agrees, a strategy, plan or program may be staged or updated without consultation being undertaken with all parties required to be consulted in the relevant condition in this consent.
- A15. If approved by the Planning Secretary, updated strategies, plans or programs supersede the previous versions of them and must be implemented in accordance with the condition that requires the strategy, plan or program.

UTILITIES, SERVICES AND PUBLIC INFRASTRUCTURE

General Requirements

- A16. Prior to the commencement of construction of the development, the Applicant must:
- (a) consult with the relevant owner and provider of utility services or public infrastructure that are likely to be affected by the development or that need to be installed as part of the development, to make suitable arrangements for relevant approvals, access to, diversion, protection and support of the affected services or infrastructure;
 - (b) prepare a dilapidation report identifying the condition of all public infrastructure in the vicinity of the site (including roads, gutters and footpaths); and
 - (c) submit a copy of the dilapidation report to the Planning Secretary and Council.
- A17. Unless the Applicant and the applicable authority agree otherwise, the Applicant must:
- (a) repair, or pay the full costs associated with repairing, any public infrastructure that is damaged by carrying out the development;
 - (b) relocate, or pay the full costs associated with relocating, any public infrastructure that needs to be relocated as a result of the development; and
 - (c) obtain any relevant approval(s) from the relevant service provider(s), prior to undertaking construction of the corresponding utility works/ public infrastructure.

Sydney Water

- A18. Prior to the issue of an Occupation Certificate, the Applicant must obtain a Compliance Certificate for water and sewerage infrastructure servicing of the site under section 73 of the *Sydney Water Act 1994*.

Fibre-Ready Facilities

- A19. Within six months of the commencement of construction of the main data centre building, or as otherwise agreed to in writing by the Planning Secretary, the Applicant (whether or not a constitutional corporation) is to provide evidence, satisfactory to the Certifier, that arrangements have been made for:
- (a) the installation of fibre-ready facilities to all individual lots and/or premises in the development to enable fibre to be readily connected to any premises that is being or may be constructed on those lots; and
 - (b) the provision of fixed-line telecommunications infrastructure in the fibre-ready facilities to all individual lots and/or premises in the development demonstrated through an agreement with a carrier.
- A20. Prior to the issue of the Occupation Certificate for the development the Applicant must demonstrate that the carrier has confirmed in writing it is satisfied that the fibre-ready facilities are fit-for-purpose.

DEMOLITION

- A21. All demolition must be carried out in accordance with *Australian Standard AS 2601-2001 The Demolition of Structures* (Standards Australia, 2001).

STRUCTURAL ADEQUACY

- A22. All new buildings and structures, and any alterations or additions to existing buildings and structures, that are part of the development, must be constructed in accordance with the relevant requirements of the BCA.

Note:

- Under Part 6 of the EP&A Act, the Applicant is required to obtain construction and occupation certificates for the proposed building works.
- The *Environmental Planning and Assessment (Development Certification and Fire Safety) Regulation 2021* sets out the requirements for the certification of the development.

EXTERNAL WALLS AND CLADDING

- A23. The external walls of all buildings including additions to existing buildings must comply with the relevant requirements of the BCA.
- A24. Prior to the issue of:
- (a) any Construction Certificate relating to the construction of external walls (including the installation of finishes and claddings such as synthetic or aluminium composite panels); and
 - (b) an Occupation Certificate,
- the Applicant must provide the Certifier with documented evidence that the products and systems proposed for use or used in the construction of external walls (including finishes and claddings such as synthetic or aluminium composite panels) comply with the requirements of the BCA.
- A25. The Applicant must provide a copy of the documentation given to the Certifier to the Planning Secretary within seven days after the Certifier accepts it.

COMPLIANCE

- A26. The Applicant must ensure that all of its employees, contractors (and their sub-contractors) are made aware of, and are instructed to comply with, the conditions of this consent relevant to activities they carry out in respect of the development.

OPERATION OF PLANT AND EQUIPMENT

- A27. All plant and equipment used on site, or to monitor the performance of the development, must be:
- (a) maintained in a proper and efficient condition; and
 - (b) operated in a proper and efficient manner.

EASEMENTS

- A28. Prior to the issue of an Occupation Certificate for the development, an easement under section 88A and/or restriction or public positive covenant under section 88E of the *Conveyancing Act 1919* naming the Council as the prescribed authority, which can only be revoked, varied or modified with the consent of the Council, and which provides for the water-sensitive urban design (WSUD) system as described in the RTS, must be registered on title of Lot 1 DP 857249.

WORK AS EXECUTED PLANS

- A29. Prior to the issue of the Occupation Certificate for the development, work-as-executed drawings signed by a registered surveyor demonstrating that the stormwater drainage and finished ground levels have been constructed as approved, must be submitted to Council and the Principal Certifier.

APPLICABILITY OF GUIDELINES

- A30. References in the conditions of this consent to any guideline, protocol, Australian Standard or policy are to such guidelines, protocols, Standards or policies in the form they are in as at the date of this consent.
- A31. However, consistent with the conditions of this consent and without altering any limits or criteria in this consent, the Planning Secretary may, when issuing directions under this consent in respect of ongoing monitoring and management obligations, require compliance with an updated or revised version of such a guideline, protocol, Standard or policy, or a replacement of them.

ADVISORY NOTES

- AN1. All licences, permits, approvals and consents as required by law must be obtained and maintained as required for the development. No condition of this consent removes any obligation to obtain, renew or comply with such licences, permits, approvals and consents.

PART B SPECIFIC ENVIRONMENTAL CONDITIONS

NOISE

Hours of Work

B1. The Applicant must comply with the hours detailed in Table 1.

Table 1 Hours of Work

Activity	Day	Time
Construction	Monday – Friday Saturday	7 am to 6 pm 8 am to 1 pm
Operation (excluding back-up generator testing)	Monday – Sunday	24 hours
Back-up generator testing	Monday – Friday	7 am to 6 pm

- B2. Works outside of the hours identified in condition B1 may be undertaken in the following circumstances:
- (a) works that are inaudible at the nearest sensitive receivers;
 - (b) works agreed to in writing by the Planning Secretary;
 - (c) for the delivery of materials required outside these hours by the NSW Police Force or other authorities for safety reasons; or
 - (d) where it is required in an emergency to avoid the loss of lives, property or to prevent environmental harm.

Construction Noise Limits

- B3. The development must be constructed to achieve the construction noise management levels detailed in *the Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time). All feasible and reasonable noise mitigation measures must be implemented and any activities that could exceed the construction noise management levels must be identified and managed in accordance with the management and mitigation measures in the Appendix 2.

Construction Noise Management Plan

- B4. The Applicant must prepare a Construction Noise Management Plan for the development to the satisfaction of the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must:
- (a) be prepared by a suitably qualified and experienced noise expert;
 - (b) describe procedures for achieving the noise management levels in EPA's *Interim Construction Noise Guideline* (DECC, 2009) (as may be updated or replaced from time to time);
 - (c) describe the measures to be implemented to manage high noise generating works (such as piling);
 - (d) describe the community consultation undertaken in relation to construction noise management and outline any strategies development with the community to manage high noise generating works, or to provide respite periods; and
 - (e) include a complaints management system that would be implemented for the duration of the development.
- B5. The Applicant must:
- (a) not commence construction until the Construction Noise Management Plan required by condition B4 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Construction Noise Management Plan approved by the Planning Secretary for the duration of construction.

Operational Noise Limits

- B6. The Applicant must ensure that noise generated by operation of the development does not exceed the noise limits in *Table 2*.

Table 2 Noise Limits (dB(A))

Location	Day L _{Aeq} (15 minute)	Evening L _{Aeq} (15 minute)	Night L _{Aeq} (15 minute)
Residential receivers (Blacktown) ^a	62	60	58
Childcare Centre	60		
Industrial receivers	68		

- a. Refer to the plan in Appendix 3 of this consent for the location of residential sensitive receivers.

Note Noise generated by the development is to be measured in accordance with the relevant procedures and exemptions (including certain meteorological conditions) of the NSW Noise Policy for Industry (EPA, 2017) (as may be updated or replaced from time to time).

- B7. The Applicant must ensure the operation of plant and equipment does not generate intermittent noise at receiver locations identified in *Table 2* in accordance with Fact Sheet C of the NSW Noise Policy for Industry (EPA, 2017).

Post-Commissioning Noise Verification Report

- B8. Within three months of the commencement of full operation of the development (described in the EIS as being when all data storage equipment and associated infrastructure is in place and operating), or as otherwise directed by the Planning Secretary, the Applicant must prepare and submit a noise verification report for the development. The noise verification report must:
- (a) be prepared to the satisfaction of the Planning Secretary by a suitably qualified acoustic consultant;
 - (b) demonstrate that noise verification has been carried out by a suitably qualified and experienced acoustic consultant in accordance with the latest version of:
 - (i) *AS 1055:2018 Acoustics – Description and measurement of environmental noise* (Standards Australia, 2018); and
 - (ii) *Approved Methods for the Measurement and Analysis of Environmental Noise in NSW* (EPA, 2022); and
 - (c) include:
 - (i) an analysis of the development's compliance with the noise limits specified in condition B6;
 - (ii) an outline of management actions to be taken to address circumstances where the noise limits specified in condition B6 are exceeded; and
 - (iii) a description of contingency measures in the event management actions are not effective in reducing noise levels to an acceptable level.

VIBRATION

Vibration Criteria

- B9. Vibration caused by construction at any residence or structure outside the site must be limited to:
- (a) for structural damage, the latest version of *DIN 4150-3 (1992-02) Structural vibration - Effects of vibration on structures* (German Institute for Standardisation, 1999); and
 - (b) for human exposure, the acceptable vibration values set out in the *Environmental Noise Management Assessing Vibration: A technical guideline* (DEC, 2006) (as may be updated or replaced from time to time).
- B10. The limits in condition B9 apply unless otherwise outlined in the development's CNMP (see condition B4).

AIR QUALITY

Dust Minimisation

- B11. The Applicant must take all reasonable steps to minimise dust generated during all works authorised by this consent.

- B12. During construction of the development, the Applicant must ensure that:
- (a) exposed surfaces and stockpiles are suppressed by regular watering or other alternative suppression method;
 - (b) all trucks entering or leaving the site with loads have their loads covered;
 - (c) trucks associated with the development do not track dirt onto the public road network;
 - (d) public roads used by these trucks are kept clean; and
 - (e) land stabilisation works are carried out progressively on site to minimise exposed surfaces.

Air Quality Discharges

- B13. The Applicant must install and operate equipment in line with best practice to ensure that the development complies with all load limits, air quality criteria/air emission limits and air quality monitoring requirements as specified in the Protection of the Environment Operations (Clean Air) Regulation 2022.

Back-up Generator System

- B14. The Applicant must ensure the design, installation and operation of the back-up generators and/or the associated enclosures do not preclude the ability for additional air pollution emission controls to be retrofitted.
- B15. The Applicant must ensure that back-up generator exhausts are vented through a vertical stack at no less than 34 m above ground level.
- B16. The Applicant must undertake an annual emission test on at least one (1) generator for the pollutants and parameters listed in the EPL. The annual emission test must not be conducted on the same generator as the preceding years. The sampling methods are those contained in the *Approved Methods for the Sampling and Analysis of Air Pollutants in NSW* (EPA, 2022).

Nitrogen Dioxide Monitoring Procedure

- B17. Prior to the commencement of operation of the development, the Applicant must prepare a Nitrogen Dioxide Monitoring Procedure (NDMP) to the satisfaction of the Planning Secretary. The NDMP must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) identify the contemporary impact assessment criteria for nitrogen dioxide emissions;
 - (c) describe the control measures which would be implemented to minimise the duration of each power outage event;
 - (d) outline the monitoring procedure which would be implemented during each power outage event, in accordance with the most recent version of the *Approved Methods for the sampling and analysis of air pollutants in NSW* (EPA, 2022); and
 - (e) described the management actions which would be taken to address any exceedances of the impact assessment criteria identified in condition B17(b).
- B18. The Applicant must:
- (a) not commence operation until the NDMP (see condition B17) is approved by the Planning Secretary; and
 - (b) implement the most recent version of the NDMP approved by the Planning Secretary for the duration of the development.

Power Outage Notification Protocol

- B19. Prior to the commencement of operation, the Applicant must prepare a Power Outage Notification Protocol (PONP) for the development. The PONP must:
- (a) identify the neighbouring properties which would be notified should a power outage event last 30 minutes or more;
 - (b) identify the trigger point(s) for notifying neighbouring properties that the back-up generator system is operating; and
 - (c) detail how these properties would be made aware that the development's back-up generator system is required to operate for the duration of the power outage event.

Note: *Methods for notifying neighbouring properties could include, but are not limited to, doorknocking, letterbox drops and/or email notifications.*

- B20. The Applicant must:
- (a) not commence operation until the PONP (see condition B19) is submitted to the Planning Secretary; and
 - (b) implement the most recent version of the PONP submitted to the Planning Secretary during power outage events which last 30 minutes or more.

HAZARDS AND RISK

B21. The Applicant must design and operate the development in accordance with:

- (a) *AS/ NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
- (b) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (Standards Australia, 2023); and
- (c) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017).

In the event of an inconsistency between the standards listed above, the most stringent requirement shall prevail to the extent of the inconsistency.

B22. The Applicant must ensure that the quantities of dangerous goods stored or transported to and from the development will not exceed the screening threshold quantities in the Department's *Applying SEPP 33* at all times.

Fire Safety Study

B23. At least one month prior to the commencement of construction of the development (except for construction of those preliminary works that are outside the scope of the hazard studies), or within such further period as the Planning Secretary may agree, the Applicant must prepare and submit a Fire Safety Study (FSS) for the development. The FSS must:

- (a) meet the operational requirements of FRNSW;
- (b) address the relevant aspects of:
 - (i) *Hazardous Industry Planning Advisory Paper No. 2, 'Fire safety study guidelines'* (DoP, 2011); and
 - (ii) *Best practice guidelines for contaminated water retention and treatment systems* (NSW HMPCC, 1994); and
- (c) consider the operational capability of local fire agencies and the need for the facility to achieve an adequate level of on-site fire and life safety independence;
- (d) verify that the final design of the fire safety system(s) complies with:
 - (i) *AS/NZS 4681:2000 The storage and handling of Class 9 (miscellaneous) dangerous goods and articles* (Standards Australia, 2000);
 - (ii) *IEC 62619:2022 Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications* (Standards Australia, 2023); and
 - (iii) *AS 1940:2017 The storage and handling of flammable and combustible liquids* (Standards Australia, 2017); and
- (e) report on the outcome of consultation with FRNSW regarding compliance with *Loss Prevention Data Sheet 5-32 – Data centres and related facilities* (FM Global Property, 2022).

In the event of an inconsistency between the requirements listed in subpoints (d)(i) to (d)(iii) above, the requirements as agreed to with FRNSW shall prevail to the extent of inconsistency.

B24. The Applicant must:

- (a) not commence construction of the development (except for construction of preliminary works that are outside the scope of the fire-related reports or studies) until the FSS (see condition B23) has been approved by FRNSW; and
- (b) provide a copy of the approved FSS to the Planning Secretary within seven days after it is approved by FRNSW.

Emergency Services Information Package

B25. From the commencement of construction and for the life of the development, an Emergency Services Information Package, developed in accordance with the *FRNSW Fire Safety Guideline – Emergency Services Information Package and Tactical Fire Plans*, must be stored in an emergency information cabinet directly adjacent to the main entry point to the site.

Emergency Plan

B26. At least two months prior to the commencement of commissioning of the development, or within such further period as the Planning Secretary may agree, the Applicant must submit a comprehensive Emergency Plan and detailed emergency procedures for the development to the Planning Secretary and FRNSW. The Emergency Plan must include consideration of the safety of all people outside of the development who may be at risk from the development. The plan must be prepared in accordance with the Department's *Hazardous Industry Planning Advisory Paper No. 1, 'Emergency Planning'*.

Bunding

- B27. The Applicant must store all chemicals, fuels and oils used on-site in appropriately banded areas in accordance with the requirements of all relevant Australian Standards, and/or EPA's *Storing and Handling of Liquids: Environmental Protection – Participants Manual* (Department of Environment and Climate Change, 2007).

TRAFFIC AND ACCESS

Construction Traffic Management Plan

- B28. Prior to the commencement of construction of the development, the Applicant must prepare a Construction Traffic Management Plan for the development to the satisfaction of the Planning Secretary. The plan must form part of the CEMP required by condition C2 and must:
- (a) be prepared by a suitably qualified and experienced person(s);
 - (b) be prepared in consultation with Council;
 - (c) detail the measures that are to be implemented to ensure road safety and network efficiency during construction;
 - (d) detail heavy vehicle routes, access and parking arrangements;
 - (e) include a Driver Code of Conduct to:
 - (i) minimise the impacts of earthworks and construction on the local and regional road network;
 - (ii) minimise conflicts with other road users;
 - (iii) minimise road traffic noise; and
 - (iv) ensure truck drivers use specified routes;
 - (f) include a program to monitor the effectiveness of these measures; and
 - (g) if necessary, detail procedures for notifying residents and the community (including local schools), of any potential disruptions to routes.
- B29. The Applicant must:
- (a) not commence construction until the Construction Traffic Management Plan required by condition B28 is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Construction Traffic Management Plan approved by the Planning Secretary for the duration of construction.

Roadworks and Access

- B30. The Applicant must submit design plans to the satisfaction of the relevant roads authority which demonstrate that the proposed accesses to the development are designed to accommodate the turning path of a 19 m articulated vehicle.

Parking

- B31. The Applicant must provide sufficient parking facilities on-site, including for heavy vehicles and for site personnel, to ensure that traffic associated with the development does not utilise public and residential streets or public parking facilities.

Operating Conditions

- B32. The Applicant must ensure:
- (a) internal roads, driveways and parking (including grades, turn paths, sight distance requirements, aisle widths, aisle lengths and parking bay dimensions) associated with the development are constructed and maintained in accordance with the latest version of AS 2890.1:2004 *Parking facilities Off-street car parking* (Standards Australia, 2004), AS 2890.2:2018 *Parking facilities Off-street Commercial Vehicle Facilities* (Standards Australia, 2018) and AS 2890.6:2009 *Parking facilities Off-street parking for people with disabilities* (Standards Australia, 2009);
 - (b) the swept path of the longest vehicle entering and exiting the site, as well as manoeuvrability through the site, is in accordance with the relevant AUSTROADS guidelines;
 - (c) the development does not result in any vehicles queuing on the public road network;
 - (d) heavy vehicles and bins associated with the development are not parked on local roads or footpaths in the vicinity of the site;
 - (e) all vehicles are wholly contained on site before being required to stop;
 - (f) all loading and unloading of materials is carried out on-site; and
 - (g) the proposed turning areas in the car park are kept clear of any obstacles, including parked cars, at all times.

Work Place Travel Plan

- B33. Prior to the commencement of operation, the Applicant must prepare a Workplace Travel Plan to encourage the use of sustainable and active transport options by operational staff. The plan must:
- (a) be submitted to the Planning Secretary;
 - (b) outline facilities and measures to promote public transport usage, such as car share schemes and employee incentives; and
 - (c) describe pedestrian and bicycle linkages and end of trip facilities available on-site.
- B34. The Applicant must:
- (a) not commence operation until the Workplace Travel Plan (see condition B33) has been submitted to the Planning Secretary; and
 - (b) implement the most recent version of the Workplace Travel Plan submitted to the Planning Secretary for the duration of the development.

SOILS, WATER QUALITY AND HYDROLOGY

Imported Soil

- B35. The Applicant must:
- (a) ensure that only VENM, ENM, or other material approved in writing by EPA is brought onto the site;
 - (b) keep accurate records of the volume and type of fill to be used; and
 - (c) make these records available to the Planning Secretary upon request.

Erosion and Sediment Control

- B36. Prior to the commencement of any construction or other surface disturbance for the development, the Applicant must install suitable erosion and sediment control measures on-site, in accordance with the relevant requirements of the *Managing Urban Stormwater: Soils and Construction - Volume 1: Blue Book* (Landcom, 2004) guideline and the Erosion and Sediment Control Plan included in the CEMP required by condition C2.
- B37. The Applicant must maintain the erosion and sediment control measures installed on-site in accordance with condition B36 for the duration of construction of the development.

Discharge Limits

- B38. The development must comply with section 120 of the POEO Act, which prohibits the pollution of waters, except as expressly provided for in an EPL.

Stormwater Management System

- B39. Prior to the commencement of construction of the development, the Applicant must finalise the detailed design of the stormwater management system for the development. The system must:
- (a) be designed by a suitably qualified and experienced person(s);
 - (b) be designed in consultation with Council;
 - (c) be generally in accordance with the conceptual design in the EIS and RTS;
 - (d) be in accordance with applicable Australian Standards; and
 - (e) ensure that the system capacity and blockage factors have been designed in accordance with *Australian Rainfall and Runoff* (Engineers Australia, 2019) and *Managing Urban Stormwater: Council Handbook* (EPA, 1997).
- B40. Prior to the commencement of operation, the Applicant must install the stormwater management system in accordance with the finalised detailed design (as required by condition B39) and ensure the system is operational.
- B41. The Applicant must maintain the stormwater management system installed on the site under condition B40 for the duration of the development.

BIODIVERSITY

- B42. Prior to any clearing or construction works for the development, the Applicant must purchase and retire seven (7) ecosystem credits and sixteen (16) species credits to offset the removal/disturbance of ecosystems and species identified in Appendix 4 of this consent. The ecosystem and species credits must be retired in accordance with the requirements of the E&H Group's Biodiversity Offsets Scheme and the *Biodiversity Conservation Act 2016*.
- B43. The requirement to retire ecosystem and species credits (see condition B42) may be satisfied by payment to the Biodiversity Conservation Fund of an amount equivalent to the number and classes of ecosystem and species credits, as calculated by the E&H Group's Biodiversity Offsets Payment Calculator.

- B44. The Applicant must provide the Planning Secretary with evidence that:
- (a) the retirement of ecosystem credits has been completed (see condition B42); or
 - (b) a payment has been made to the Biodiversity Conservation Fund (see condition B43), prior to undertaking any clearing or construction works for the development.

Tree protection

- B45. Prior to the commencement of construction, a project arborist with a minimum 'Australian Qualifications Framework – Level 5' certification is to be appointed. The project arborist is to:
- (a) oversee the tree protection measures required under this consent;
 - (b) oversee any works within the Tree Protection Zones established under this consent; and
 - (c) complete regular inspections of retained trees in accordance with the Arboricultural Impact Assessment and Tree Protection Plan prepared by Tree Survey Pty Ltd, dated 6 July 2022 for the duration of construction in order to ensure that protection measures are being adhered to.

Biodiversity Management Plan

- B46. Prior to clearing for construction of the development, the Applicant must prepare a Biodiversity Management Plan (BMP) for the development to the satisfaction of the Planning Secretary. The Biodiversity Management Plan must form part of the CEMP in accordance with condition C2. The Plan must include the following:
- (a) identification of trees to be protected during construction;
 - (b) details of protection measures for retained trees to be implemented in accordance with the recommendations in the Biodiversity Development Assessment Report (BDAR) prepared by Travers Bushfire and Ecology, dated 21 July 2023 and the latest version of Australian Standard 4970:2009 – Protection of Trees on Development Sites;
 - (c) a procedure for the inspection and validation of tree protection fencing and fauna handling during tree clearance by a suitably qualified ecologist and arborist; and
 - (d) mitigation and management measures recommended in the Biodiversity Development Assessment Report (BDAR) prepared by Travers Bushfire and Ecology, dated 21 July 2023.
- B47. The Applicant must:
- (a) not commence operation until the Biodiversity Management Plan is approved by the Planning Secretary; and
 - (b) implement the most recent version of the Biodiversity Management Plan approved by the Planning Secretary.
- B48. In the event that native fauna is found during tree removal works, all works in the immediate vicinity of the animal(s) must cease. Work in the immediate vicinity of the animal(s) must not recommence until a trained wildlife handler attends the site or the animal relocates itself.

ABORIGINAL HERITAGE

Unexpected Finds Protocol

- B49. If any item or object of Aboriginal heritage significance is identified on site:
- (a) all work in the immediate vicinity of the suspected Aboriginal item or object must cease immediately;
 - (b) a 10 m wide buffer area around the suspected item or object must be cordoned off; and
 - (c) Heritage NSW must be contacted immediately.
- B50. Work in the immediate vicinity of the Aboriginal item or object may only recommence in accordance with the provisions of Part 6 of the *National Parks and Wildlife Act 1974*.

HISTORIC HERITAGE

Unexpected Finds Protocol

- B51. If any non-Aboriginal archaeological relics are uncovered during any works being carried out for the development:
- (a) all work in the immediate vicinity of the suspected relic(s) must cease immediately;
 - (b) Heritage NSW must be contacted immediately; and
 - (c) the suspected relic(s) must be evaluated, recorded and, if necessary, excavated by a suitably qualified and experienced expert in accordance with the requirements of Heritage NSW.
- B52. Work in the immediate vicinity of any suspected non-Aboriginal archaeological relic(s) must not recommence until this has been authorised by Heritage NSW.

WASTE MANAGEMENT

Construction and Demolition Waste Management

- B53. Prior to the commencement of construction of the development, the Applicant must prepare a Construction and Demolition Waste Management Plan for the development to the satisfaction of the Planning Secretary. The Plan must form part of a CEMP in accordance with condition C2 and must:
- (a) detail the quantities of each waste type generated during construction and the proposed reuse, recycling and disposal locations; and
 - (b) be implemented for the duration of construction works.
- B54. The Applicant must:
- (a) not commence construction until the Construction and Demolition Waste Management Plan is approved by the Planning Secretary.
 - (b) implement the most recent version of the Construction and Demolition Waste Management Plan approved by the Planning Secretary.
- B55. The Applicant must assess and classify all liquid and non-liquid wastes to be taken off site in accordance with the latest version of *Waste Classification Guidelines Part 1: Classifying Waste* (EPA, 2014).
- B56. All waste materials removed from the site must only be directed to a waste management facility or premises lawfully permitted to accept the materials.
- B57. Waste generated outside the site must not be received at the site for storage, treatment, processing, reprocessing, or disposal.
- B58. Waste must be secured and maintained within designated waste storage areas at all times and must not leave the site onto neighbouring public or private properties.

Pests, Vermin and Priority Weed Management

- B59. The Applicant must:
- (a) implement suitable measures to manage pests, vermin and declared priority weeds on the site; and
 - (b) inspect the site on a regular basis to ensure that these measures are working effectively, and that pests, vermin or priority weeds are not present on site in sufficient numbers to pose an environmental hazard or cause the loss of amenity in the surrounding area.

Note: For the purposes of this condition, priority weed has the same definition of the term in the Biosecurity Act 2015.

CONTAMINATION

Unexpected Finds

- B60. Prior to the commencement of construction, the Applicant must prepare an unexpected contamination finds procedure to ensure that potentially contaminated material is appropriately managed. The procedure must form part of the CEMP in accordance with condition C2 and must ensure any material identified as contaminated is disposed of in accordance with the POEO Act and its associated regulations. Details of the final disposal location and the results of any associated testing must be submitted to the Planning Secretary prior to removal of the contaminated material from the site.

Remediation

- B61. The Applicant must ensure the remediation works are undertaken by a suitably qualified and experienced consultant(s) in accordance with the Remedial Action Plan included in the EIS and relevant guidelines produced or approved under the *Contaminated Land Management Act 1997*.
- B62. Within one month of the completion of the remediation works for the development, the Applicant must submit a validation report/letter to the satisfaction of the Planning Secretary, which has been prepared by, or reviewed and approved, by a consultant certified under either the Environment Institute of Australia and New Zealand's Certified Environmental Practitioner (Site Contamination) scheme (CEnvP(SC)) or the Soil Science Australia Certified Professional Soil Scientist Contaminated Site Assessment and Management (CPSS CSAM) scheme.

Asbestos

- B63. The Applicant must ensure that any asbestos encountered during the remediation and construction works for the development is monitored, handled, transported and disposed of by appropriately qualified and licensed contractors in accordance with the requirements of SafeWork NSW and relevant guidelines, including:
- (a) *Work Health and Safety Regulation 2017*;
 - (b) SafeWork NSW Code of Practice – How to Manage and Control Asbestos in the Workplace December 2022;
 - (c) SafeWork NSW Code of Practice – How to Safely Remove Asbestos December 2022; and
 - (d) *Protection of the Environment Operations (Waste) Regulation 2014*.

VISUAL AMENITY

Landscaping

- B64. Prior to the commencement of operation of the development, the Applicant must prepare a Landscape Management Plan to manage the on-site landscaping works, to the satisfaction of the Planning Secretary. The plan must form part of an OEMP in accordance with condition C5. The plan must:
- (a) detail the species to be planted on-site (including final planting densities and pot sizes);
 - (b) describe the ongoing monitoring and maintenance measures which will be implemented to manage the landscaping works; and
 - (c) be generally consistent with:
 - (i) the Landscape Plans included in the Additional Response to Submissions; and
 - (ii) the Applicant's Management and Mitigation Measures (see Appendix 2 of this consent).
- B65. The Applicant must:
- (a) not commence operation until the Landscape Management Plan is approved by the Planning Secretary.
 - (b) must implement the most recent version of the Landscape Management Plan approved by the Planning Secretary; and
 - (c) maintain the landscaping and vegetation on the site in accordance with the approved Landscape Management Plan required by condition B64 for the life of the development.

Lighting

- B66. The Applicant must ensure the lighting associated with the development:
- (a) complies with the latest version of AS 4282-2019 - *Control of the obtrusive effects of outdoor lighting* (Standards Australia, 2019); and
 - (b) is mounted, screened and directed in such a manner that it does not create a nuisance to surrounding properties or the public road network.

Signage and Fencing

- B67. All signage and fencing must be erected in accordance with the development plans included in the RTS.

Note: *This condition does not apply to temporary construction and safety related signage and fencing.*

PART C ENVIRONMENTAL MANAGEMENT, REPORTING AND AUDITING

ENVIRONMENTAL MANAGEMENT

Management Plan Requirements

- C1. Management plans required under this consent must be prepared in accordance with relevant guidelines, and include:
- (a) detailed baseline data;
 - (b) details of:
 - (i) the relevant statutory requirements (including any relevant approval, licence or lease conditions);
 - (ii) any relevant limits or performance measures and criteria; and
 - (iii) the specific performance indicators that are proposed to be used to judge the performance of, or guide the implementation of, the development or any management measures;
 - (c) a description of the measures to be implemented to comply with the relevant statutory requirements, limits, or performance measures and criteria;
 - (d) a program to monitor and report on the:
 - (i) impacts and environmental performance of the development; and
 - (ii) effectiveness of the management measures set out pursuant to paragraph (c) above;
 - (e) a contingency plan to manage any unpredicted impacts and their consequences and to ensure that ongoing impacts reduce to levels below relevant impact assessment criteria as quickly as possible;
 - (f) a program to investigate and implement ways to improve the environmental performance of the development over time;
 - (g) a protocol for managing and reporting any:
 - (i) incident and any non-compliance (specifically including any exceedance of the impact assessment criteria and performance criteria);
 - (ii) complaint;
 - (iii) failure to comply with statutory requirements; and
 - (h) a protocol for periodic review of the plan.

Note: *The Planning Secretary may waive some of these requirements if they are unnecessary or unwarranted for particular management plans*

CONSTRUCTION ENVIRONMENTAL MANAGEMENT PLAN

- C2. The Applicant must prepare a Construction Environmental Management Plan (CEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C3. As part of the CEMP required under condition C2 of this consent, the Applicant must include the following:
- (a) Construction Noise Management Plan (see condition B4);
 - (b) Construction Traffic Management Plan (see condition B28);
 - (c) Erosion and Sediment Control Plan;
 - (d) Construction and Demolition Waste Management Plan (see condition B53);
 - (e) Unexpected Finds Contamination Procedure (see condition B60); and
 - (f) Community Consultation and Complaints Handling.
- C4. The Applicant must:
- (a) not commence construction of the development until the CEMP is approved by the Planning Secretary; and
 - (b) carry out the construction of the development in accordance with the CEMP approved by the Planning Secretary and as revised and approved by the Planning Secretary from time to time.

OPERATIONAL ENVIRONMENTAL MANAGEMENT PLAN

- C5. The Applicant must prepare an Operational Environmental Management Plan (OEMP) for the development in accordance with the requirements of condition C1 and to the satisfaction of the Planning Secretary.
- C6. As part of the OEMP required under condition C5 of this consent, the Applicant must include the following:
- (a) describe the role, responsibility, authority and accountability of all key personnel involved in the environmental management of the development;
 - (b) describe the procedures that would be implemented to:
 - (i) keep the local community and relevant agencies informed about the operation and environmental performance of the development;
 - (ii) receive, handle, respond to, and record complaints;
 - (iii) resolve any disputes that may arise;
 - (iv) respond to any non-compliance;
 - (v) respond to emergencies; and
 - (c) include the following environmental management plans:
 - (i) Biodiversity (see condition B46); and
 - (ii) Landscape (see condition B64).
- C7. The Applicant must:
- (a) not commence operation until the OEMP is approved by the Planning Secretary; and
 - (b) operate the development in accordance with the OEMP approved by the Planning Secretary (and as revised and approved by the Planning Secretary from time to time).

REVISION OF STRATEGIES, PLANS AND PROGRAMS

- C8. Within three months of:
- (a) the submission of a Compliance Report under condition C14;
 - (b) the submission of an incident report under condition C10;
 - (c) the submission of a Back-up Generator Incident Report under condition C18;
 - (d) the submission of a Back-up Generator Annual Report under condition C17;
 - (e) the approval of any modification of the conditions of this consent; or
 - (f) the issue of a direction of the Planning Secretary under condition A2(b) which requires a review,
- the strategies, plans and programs required under this consent must be reviewed, and the Planning Secretary must be notified in writing of the outcomes of any review.
- C9. If identified as part of the review process (see condition C8) or considered necessary to improve the environmental performance of the development, the strategies, plans and programs required under this consent must be revised, to the satisfaction of the Planning Secretary. Where revisions are required, the revised document must be submitted to the Planning Secretary for approval within six weeks of the review required under condition C8, or such other timing as agreed by the Planning Secretary.

Note: This is to ensure strategies, plans and programs are updated on a regular basis and to incorporate any recommended measures to improve the environmental performance of the development.

REPORTING AND AUDITING

Incident Notification, Reporting and Response

- C10. The Planning Secretary must be notified in writing via the Major Projects website immediately after the Applicant becomes aware of an incident. The notification must identify the development (including the development application number and the name of the development if it has one) and set out the location and nature of the incident. Subsequent notification requirements must be given, and reports submitted in accordance with the requirements set out in Appendix 3.

Non-Compliance Notification

- C11. The Planning Secretary must be notified in writing via the Major Projects website within seven days after the Applicant becomes aware of any non-compliance.
- C12. A non-compliance notification must identify the development and the application number for it, set out the condition of consent that the development is non-compliant with, the way in which it does not comply and the reasons for the non-compliance (if known) and what actions have been, or will be, undertaken to address the non-compliance.
- C13. A non-compliance which has been notified as an incident does not need to also be notified as a non-compliance.

Compliance Reporting

- C14. Within the first year of commencement of operation of the development, and in the same month each subsequent year (or such other timing as agreed by the Planning Secretary), the Applicant must submit a Compliance Report to the Planning Secretary reviewing the environmental performance of the development to the satisfaction of the Planning Secretary. Compliance Reports must be prepared in accordance with the Compliance Reporting Post Approval Requirements (Department 2020) and must also:
- (a) identify any trends in the monitoring data over the life of the development;
 - (b) identify any discrepancies between the predicted and actual impacts of the development, and analyse the potential cause of any significant discrepancies; and
 - (c) describe what measures will be implemented over the next year to improve the environmental performance of the development.
- C15. The Applicant must make each Compliance Report publicly available no later than 60 days after submitting it to the Planning Secretary and notify the Planning Secretary in writing at least seven days before this is done.

Back-up Generator Testing

- C16. For the life of the development (or such other time as agreed to in writing by the Planning Secretary), the Applicant must maintain a log of all back-up generator tests undertaken at the site. For each test, the log must detail the following:
- (a) the date and time of the test;
 - (b) the total number of back-up generators which were tested; and
 - (c) the duration of the test.
- A copy of the log must be made available to the Planning Secretary upon request.
- C17. Within six weeks of completing emissions testing under condition C16, and at each successive 12-month anniversary, the Applicant must prepare and submit a back-up generator annual report to the Planning Secretary and EPA. The report must:
- (a) detail the date and time of generator operation;
 - (b) detail the duration of each generator operation and total generator operating hours per annum; and
 - (c) emission test results and evaluation of compliance with the relevant emission limits in the *Protection of the Environment Operations (Clean Air) Regulation 2022*.
- C18. Within 30 days of the emergency electricity generators being used to power the development during a power outage event (or as otherwise agreed to in writing by the Planning Secretary), the Applicant must prepare and submit a Back-up Generator Incident Report for the development to the Planning Secretary and the EPA. The report must include:
- (a) date and time of the power outage event
 - (b) date and time of generator operation;
 - (c) identification of generators used to power the development;
 - (d) duration of each generator operation and total generator operation;
 - (e) total quantity of diesel fuel used by the back-up generators;
 - (f) total amount of electricity produced by the back-up generators;
 - (g) assessment of air quality impacts resultant from the operation of the generators; and
 - (h) assessment and recommendation of additional measures that could be implemented to reduce future impacts, including but not limited to reduced likelihood of generator operation and retrofit of generator emission controls.

Monitoring and Environmental Audits

- C19. Any condition of this consent that requires the carrying out of monitoring or an environmental audit, whether directly or by way of a plan, strategy or program, is taken to be a condition requiring monitoring or an environmental audit under Division 9.4 of Part 9 of the EP&A Act. This includes conditions in respect of incident notification, reporting and response, non-compliance notification, compliance reporting and independent auditing.

Note: For the purposes of this condition, as set out in the EP&A Act, "monitoring" is monitoring of the development to provide data on compliance with the consent or on the environmental impact of the development, and an "environmental audit" is a periodic or particular documented evaluation of the development to provide information on compliance with the consent or the environmental management or impact of the development.

ACCESS TO INFORMATION

C20. At least 48 hours before the commencement of construction of the development and for the life of the development, the Applicant must:

- (a) make the following information and documents (as they are obtained or approved) publicly available on its website:
 - (i) the documents referred to in condition A2 of this consent;
 - (ii) all current statutory approvals for the development;
 - (iii) all approved strategies, plans and programs required under the conditions of this consent, excluding any documents described in conditions B23, B25, or B26;
 - (iv) the proposed staging plans for the development if the construction, operation or decommissioning of the development is to be staged;
 - (v) a summary of the current stage and progress of the development;
 - (vi) contact details to enquire about the development or to make a complaint;
 - (vii) a complaints register, updated quarterly (see conditions C3 and C6);
 - (viii) the Compliance Report of the development;
 - (ix) any other matter required by the Planning Secretary; and
- (b) keep such information up to date, to the satisfaction of the Planning Secretary.

APPENDIX 1 DEVELOPMENT LAYOUT PLANS

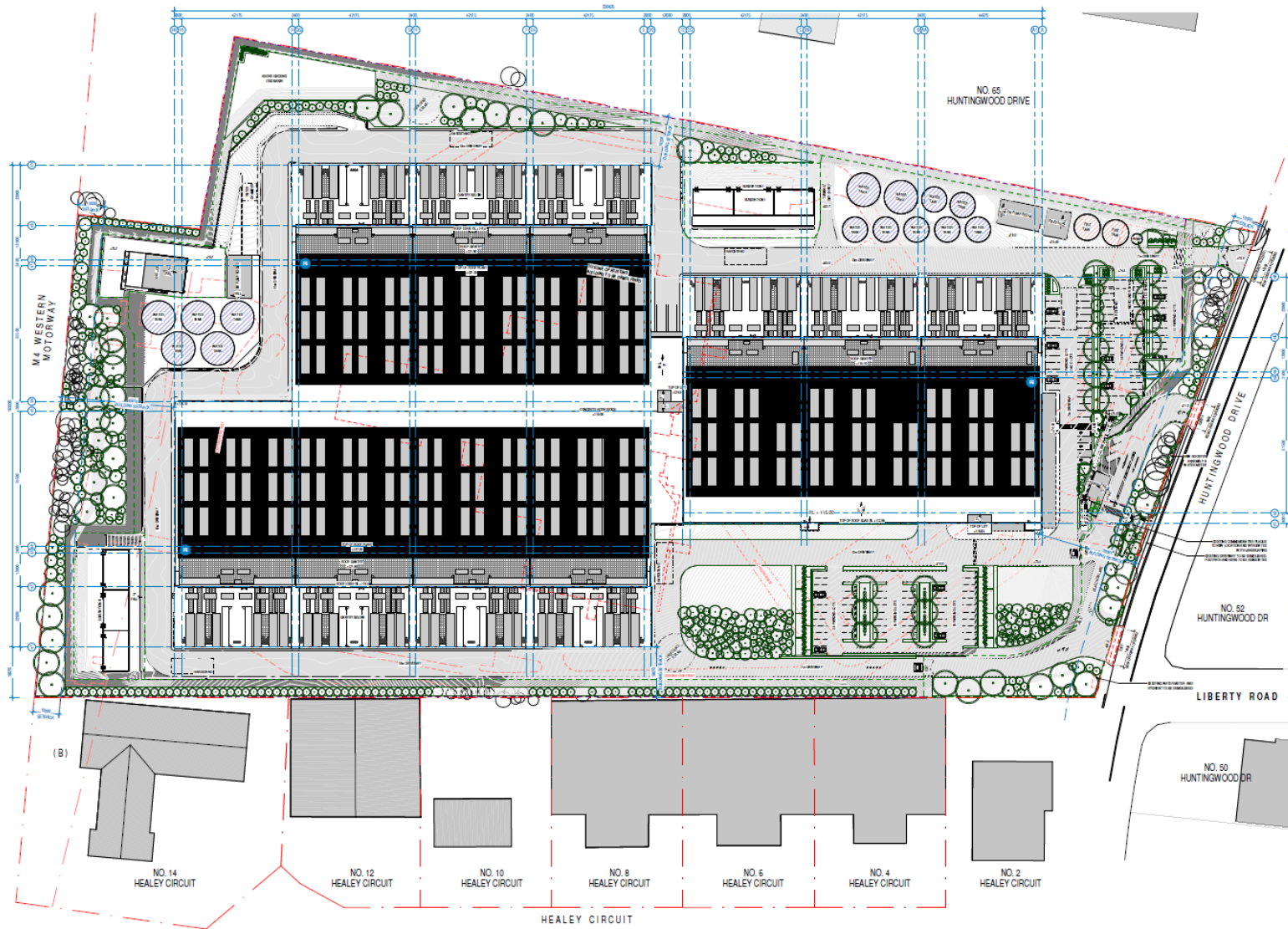


Figure 1: Site Plan

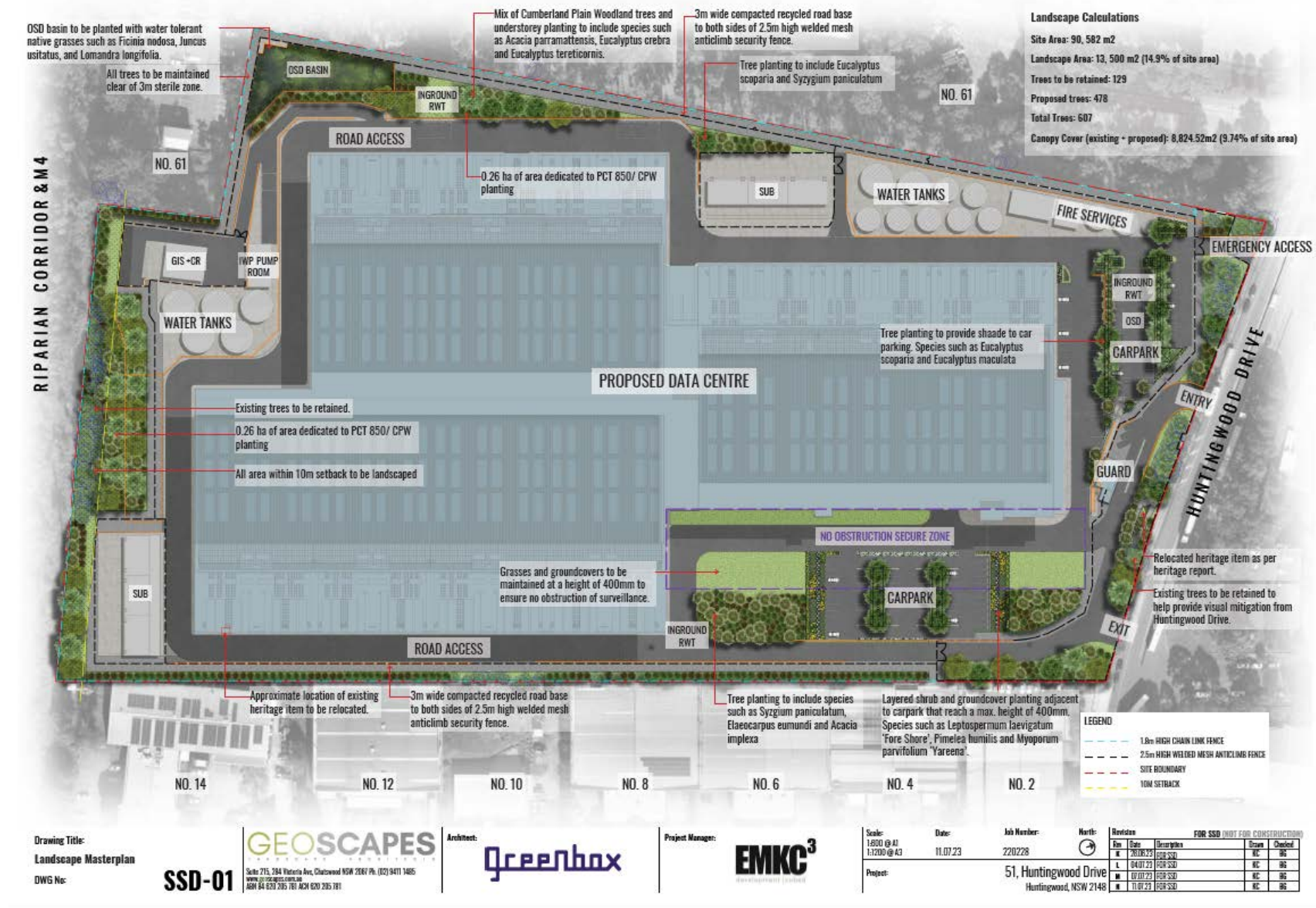


Figure 2: Landscape Plan

PROJECT NO.	DRAWING NO.	REV	DATE	TITLE
Architectural drawings prepared by Greenbox Architecture Pty Ltd				
210043	DA010	K	31/08/2023	OVERALL SITE PLAN
210043	DA011	J	31/08/2023	OVERALL LEVEL 1 PLAN (LOWER GROUND)
210043	DA012	J	31/08/2023	OVERALL LEVEL 2 PLAN (UPPER GROUND)
210043	DA013	I	31/08/2023	OVERALL LEVEL 3 PLAN
210043	DA014	H	20/04/2023	OVERALL LEVEL 4 PLAN
210043	DA015	H	20/04/2023	OVERALL LEVEL 5 PLAN
210043	DA016	H	20/04/2023	OVERALL LEVEL 6 PLAN (LOWER ROOF)
210043	DA017	H	20/04/2023	OVERALL LEVEL 7 PLAN (UPPER ROOF)
210043	DA020	J	31/08/2023	SITE ELEVATION
210043	DA030	I	31/08/2023	SITE SECTION
210043	DA031	I	31/08/2023	SITE SECTION
210043	DA101	E	11/07/2022	PART A – L1 + MEZZANINE
210043	DA102	E	11/07/2022	PART A – L2 – L5 (TYPICAL)
210043	DA103	E	11/07/2022	PART A – L6 ROOF
210043	DA111	E	11/07/2022	PART B – L2
210043	DA112	F	20/04/2023	PART B – L3 – L6 (TYPICAL)
210043	DA113	F	20/04/2023	PART B – L7 ROOF
210043	DA121	E	11/07/2022	PART C – L2 – L6 (TYPICAL)
210043	DA122	F	20/04/2023	PART C – L7 ROOF
210043	DA201	I	31/08/2023	PART A – BUILDING ELEVATION
210043	DA202	H	20/04/2023	PART A – BUILDING ELEVATION
210043	DA203	D	20/04/2023	PART A – BUILDING SECTION
210043	DA211	H	20/04/2023	PART B & C – BUILDING ELEVATION
210043	DA212	H	20/04/2023	PART B & C – BUILDING ELEVATION
210043	DA213	D	20/04/2023	PART B & C BUILDING SECTION
210043	DA300	C	11/07/2022	SECURITY GUARD KIOSK DETAILS
210043	DA310	D	20/04/2023	SUBSTATION 1 DETAILS
210043	DA311	D	20/04/2023	SUBSTATION 2 DETAILS

210043	DA320	D	20/04/2023	PUMP ROOM DETAILS
210043	DA321	D	20/04/2023	PUMP ROOM II DETAILS
210043	DA322	D	20/04/2023	PUMP ROOM III DETAILS
210043	DA330	D	20/04/2023	ELECTRICAL CONTROL ROOM
210043	DA400	F	11/05/2023	MATERIAL FINSHES SCHEDULE
210043	DA500	D	11/07/2022	DEMOLITION PLAN
210043	DA920	D	04/07/2023	PHASING DIAGRAM
Civil drawings prepared by van der Meer Consulting Pty Ltd				
SY212-053	DAC000	C	07/07/2022	COVER SHEET
SY212-053	DAC101	B	07/07/2022	SITE PLAN
SY212-053	DAC201	C	13/03/2023	EARTHWORKS CUT/FILL HEATMAP
SY212-053	DAC202	B	07/07/2022	EARTHWORKS SECTIONS – SHEET 1
SY212-053	DAC203	B	07/07/2022	EARTHWORKS SECTIONS – SHEET 2
SY212-053	DAC205	B	07/07/2022	GRADING SECTION
SY212-053	DAC210	C	07/07/2022	EROSION & SEDIMENT CONTROL – SHEET 1
SY212-053	DAC211	C	07/07/2022	EROSION & SEDIMENT CONTROL – SHEET 2
SY212-053	DAC311	B	07/07/2022	DRIVEWAY SECTIONS
SY212-053	DAC401	D	13/03/2023	DRAINAGE LAYOUT – SHEET 1
SY212-053	DAC402	D	13/03/2023	DRAINAGE LAYOUT – SHEET 2
SY212-053	DAC403	D	13/03/2023	DRAINAGE LAYOUT – SHEET 3
SY212-053	DAC405	D	13/03/2023	DRAINAGE DETAILS
SY212-053	DAC410	D	13/03/2023	OSD TANK A DETAILS
SY212-053	DAC411	D	13/03/2023	OSD BASIN B DETAILS
SY212-053	DAC450	D	13/03/2023	OSD CATCHMENT PLAN
SY212-053	DAC451	C	07/07/2022	MUSIC CATCHMENT PLAN

APPENDIX 2 APPLICANT'S MANAGEMENT AND MITIGATION MEASURES

PLANNED MANAGEMENT AND MITIGATION MEASURES FOR SSD-41589232		
ID	Management / Mitigation Measure	Timing
Administrative Commitments		
A1	Commitment to Minimise Harm to the Environment EMKC ³ will commit to implement all reasonable and feasible measures, to prevent and/or minimise any harm to the environment, that may result from the construction or operation of the proposed development	Prior to construction, during construction, and during operation.
A2	Construction Certificates EMKC ³ will ensure that a staged approach will be taken to obtain relevant Construction Certificates with respect to the respective construction stages..	Prior to construction.
A3	Occupation Certificate EMKC ³ will ensure that Occupation Certificates are obtained prior to the occupation of the facilities.	Prior to occupation.
A4	Terms of Approval EMKC ³ will carry out the project generally in accordance with the: (a) Environmental Impact Statement; (b) Drawings and Plans prepared by Greenbox Architecture; (c) Management and Mitigation Measures; (d) Any Conditions of Approval (including operational use of the Site 24/7).	Prior to construction, during construction, and during operation.
A5	Inconsistency If there is any inconsistency between the above, the Conditions of Approval shall prevail to the extent of the inconsistency.	Prior to construction, during construction, and during operation.
A6	Compliance EMKC ³ will ensure compliance with any reasonable requirement(s) of the Secretary of the NSW DPE arising from the assessment of: (a) Any reports, plans, programs, strategies or correspondence that are submitted in relation to this Approval; and (b) The implementation of any recommended actions or measures contained in reports, plans, programs, strategies or correspondence submitted by the Project Team as part of the application for Approval.	Prior to construction, during construction, and during operation.
A7	Structural Adequacy EMKC ³ will ensure that all new buildings and structures on the site are constructed in accordance with the relevant requirements of the National Construction Code.	During construction.
A8	Operation of Plant and Equipment EMKC ³ will ensure that all plant and equipment used on-site, is maintained and operated in proper and efficient manner, and in accordance with relevant NSW EPA noise emission criteria and Australian Standards.	During construction and operation.

A9	Construction Traffic Management Plan EMKC ³ would ensure that a Construction Traffic Management Plan (CTMP) is prepared and submitted to the NSW DPE. This CTMP would: a) be submitted to the Secretary-General for approval prior to the commencement of construction; b) describe the traffic volumes and movements to occur during construction; c) detail proposed measures to minimise the impact of construction traffic on the surrounding network, including driver behaviour and vehicle maintenance; and, d) detail the procedures to be implemented in the event of a complaint from the public regarding construction traffic. e) be in accordance with the CTMP proposed to be implemented.	Prior to construction.
A10	Construction Environmental Management Plan Prior to the commencement of construction, EMKC ³ would prepare a Construction Environmental Management Plan (CEMP) that addresses the following (as necessary): a) Land Contamination; b) Air Quality; c) Waste Classification; d) Erosion and Sediment Control; and, e) Materials Management Plan.	Prior to construction.
A11	Monitoring the State of Roadways EMKC ³ will monitor the state of roadways leading to and from the subject site, and will take all necessary steps to clean up any adversely impacted road pavements, as a result of the their construction works, as directed by Council.	During construction.
A12	Waste Receipts EMKC ³ will ensure that a permanent record of receipts, for the removal of both liquid and solid waste from the subject site, be kept and maintained up to date at all times. Such records will be made available to authorised person upon request.	During construction and operation.
A13	Complaints Handling EMKC ³ will prepare an Operational Complaints Handling Protocol for the development, prior to the commencement of operations.	Prior to operation.
Specific Environmental Commitments		
Air Quality		
AQ1	Air quality mitigation and monitoring will form part of the CEMP, to be prepared for the project, as outlined in A10 .	Prior to construction.
AQ2	Develop and implement a stakeholder communications plan that includes community engagement before work commences on site.	Prior to construction.
AQ3	Display the name and contact details of person(s) accountable for air quality and dust issues on the site boundary. This may be the environment manager/engineer or the site manager.	Prior to construction.
AQ4	Display the head or regional office contact information	Prior to construction.

AQ5	Develop and implement a Dust Management Plan (DMP), which may include measures to control other emissions, approved by the relevant regulatory bodies.	Prior to construction.
AQ6	Record all dust and air quality complaints, identify cause(s), take appropriate measures to reduce emissions in a timely manner, and record the measures taken.	Prior to construction.
AQ7	Make the complaints log available to the local authority when asked.	Prior to construction.
AQ8	Record any exceptional incidents that cause dust and/or air emissions, either on- or offsite, and the action taken to resolve the situation in the log book.	Prior to construction.
AQ9	Hold regular liaison meetings with other high-risk construction sites within 500 m of the site boundary, to ensure plans are coordinated and dust and particulate matter emissions are minimised. It is important to understand the interactions of the off-site transport/ deliveries which might be using the same strategic road network routes	Prior to construction.
AQ10	Undertake daily on-site and off-site inspections where receptors (including roads) are nearby, to monitor dust, record inspection results, and make the log available to the local authority when asked. This should include regular dust soiling checks of surfaces such as street furniture, cars and window sills within 100m of site boundary	Prior to construction.
AQ11	Carry out regular site inspections to monitor compliance with the dust management plan / CEMP, record inspection results, and make an inspection log available to the local authority when asked.	Prior to construction.
AQ12	Increase the frequency of site inspections by the person accountable for air quality and dust issues on site when activities with a high potential to produce dust are being carried out and during prolonged dry or windy conditions.	Prior to construction.
AQ13	Agree dust deposition, dust flux, or real-time continuous monitoring locations with the relevant regulatory bodies. Where possible commence baseline monitoring at least three months before work commences on site or, if it a large site, before work on a phase commences.	Prior to construction.
AQ14	Plan site layout so that machinery and dust causing activities are located away from receptors, as far as is possible	Prior to construction.
AQ15	Erect solid screens or barriers around dusty activities or the site boundary that they are at least as high as any stockpiles on site.	Prior to construction.
AQ16	Fully enclose site or specific operations where there is a high potential for dust production and the site is active for an extensive period.	Prior to construction.
AQ17	Avoid site runoff of water or mud.	Prior to construction.
AQ18	Keep site fencing, barriers and scaffolding clean using wet methods.	Prior to construction.
AQ19	Remove materials that have a potential to produce dust from site as soon as possible, unless being re-used on site. If they are being re-used on-site cover as described below	Prior to construction.
AQ20	Cover, seed or fence stockpiles to prevent wind erosion.	Prior to construction.
AQ21	Ensure all on-road vehicles comply with relevant vehicle emission standards, where applicable	During construction.
AQ22	Ensure all vehicles switch off engines when stationary - no idling vehicles	During construction.

AQ23	Avoid the use of diesel or petrol-powered generators and use mains electricity or battery powered equipment where practicable	During construction.
AQ24	Impose and signpost a maximum-speed-limit of 25 km·h ⁻¹ on surfaced and 15 km·h ⁻¹ on unsurfaced haul roads and work areas (if long haul routes are required these speeds may be increased with suitable additional control measures provided, subject to the approval of the nominated undertaker and with the agreement of the local authority, where appropriate	During construction.
AQ25	Produce a Construction Logistics Plan to manage the sustainable delivery of goods and materials.	During construction.
AQ26	Implement a Travel Plan that supports and encourages sustainable travel (public transport, cycling, walking, and car-sharing)	During construction.
AQ27	Only use cutting, grinding or sawing equipment fitted or in conjunction with suitable dust suppression techniques such as water sprays or local extraction, e.g. suitable local exhaust ventilation systems	During operation.
AQ28	Ensure an adequate water supply on the site for effective dust/particulate matter suppression/ mitigation, using non-potable water where possible and appropriate	During operation.
AQ29	Use enclosed chutes and conveyors and covered skips	During operation.
AQ30	Minimise drop heights from conveyors, loading shovels, hoppers and other loading or handling equipment and use fine water sprays on such equipment wherever appropriate	During operation.
AQ31	Ensure equipment is readily available on site to clean any dry spillages, and clean up spillages as soon as reasonably practicable after the event using wet cleaning methods	During operation.
AQ32	Soft strip inside buildings before demolition (retaining walls and windows in the rest of the building where possible, to provide a screen against dust).	Prior to demolition.
AQ33	Ensure effective water suppression is used during demolition operations. Hand held sprays are more effective than hoses attached to equipment as the water can be directed to where it is needed. In addition, high volume water suppression systems, manually controlled, can produce fine water droplets that effectively bring the dust particles to the ground.	Prior to demolition.
AQ34	Avoid explosive blasting, using appropriate manual or mechanical alternatives.	Prior to demolition.
AQ35	Bag and remove any biological debris or damp down such material before demolition.	Prior to demolition.
AQ36	Re-vegetate earthworks and exposed areas/soil stockpiles to stabilise surfaces as soon as practicable	Prior to demolition.
AQ37	Use Hessian, mulches or trackifiers where it is not possible to re-vegetate or cover with topsoil, as soon as practicable	Prior to demolition.
AQ38	Only remove the cover in small areas during work and not all at once	Prior to demolition.
AQ39	Avoid scabbling (roughening of concrete surfaces) if possible	During construction.
AQ40	Ensure sand and other aggregates are stored in bunded areas and are not allowed to dry out, unless this is required for a particular process, in which case ensure that appropriate additional control measures are in place.	During construction.

AQ41	Ensure bulk cement and other fine powder materials are delivered in enclosed tankers and stored in silos with suitable emission control systems to prevent escape of material and overfilling during delivery.	During construction.
AQ42	For smaller supplies of fine power materials ensure bags are sealed after use and stored appropriately to prevent dust	During construction.
AQ43	Use water-assisted dust sweeper(s) on the access and local roads to remove, as necessary, any material tracked out of the site	During construction.
AQ44	Avoid dry sweeping of large areas	During construction.
AQ45	Ensure vehicles entering and leaving sites are covered to prevent escape of materials during transport.	During construction.
AQ46	Inspect on-site haul routes for integrity and instigate necessary repairs to the surface as soon as reasonably practicable	During construction.
AQ47	Record all inspections of haul routes and any subsequent action in a site log book.	During construction.
AQ48	Install hard surfaced haul routes, which are regularly damped down with fixed or mobile sprinkler systems, or mobile water bowsters and regularly cleaned	During construction.
AQ49	Implement a wheel washing system (with rumble grids to dislodge accumulated dust and mud prior to leaving the site where reasonably practicable).	During construction.
AQ50	Ensure there is an adequate area of hard surfaced road between the wheel wash facility and the site exit, wherever site size and layout permits	During construction.
AQ51	Access gates to be located at least 10 m from receptors where possible	During construction.
Traffic and Transport		
TT1	EMKC ³ will finalise and implement the Construction Traffic Management Plan (CTMP).	Prior to and during construction.
TT2	During construction: a) all trucks entering or leaving the Site with loads, will have their loads covered; b) trucks associated with the project do not track dirt onto the public road network; and, c) the public roads used by these trucks are to be kept clean.	During construction.
TT3	Ensure all on-road vehicles comply with relevant vehicle emission standards, where applicable	During construction.
TT4	Ensure bulk cement and other fine powder materials are delivered in enclosed tankers and stored in silos with suitable emission control systems to prevent escape of material and overfilling during delivery.	During construction.
TT5	Ensure vehicles entering and leaving sites are covered to prevent escape of materials during transport	During construction.
TT6	Inspect on-site haul routes for integrity and instigate necessary repairs to the surface as soon as reasonably practicable.	During construction.
TT7	Record all inspections of haul routes and any subsequent action in a site log book.	During construction.
Remediation		
R1	A Work Health and Safety Management Plan shall be prepared by the remedial contractor, containing procedures and requirements that are to be implemented as a minimum during the works, in addition to the Contingency Plan.	Prior to remediation works.

R2	Site remediation shall be carried out in accordance with the approved Remedial Action Plan.	Prior to operation.
R3	Upon completion of the remediation works, a Validation Report is required to be prepared to verify remedial works were completed in accordance with the Remedial Action Plan.	Prior to operation.
Noise		
N1	Construction on the Subject Site would only be undertaken between 7am and 6pm Monday to Friday, and 8am and 1pm on Saturdays. No construction will be permitted at the Subject Site on Sundays or public holidays. The following specific measures are proposed throughout the construction and operational phases of development: a) Prompt response to any community issues of concern; b) Noise monitoring on-site and within the surrounding areas; c) Refinement of on-site noise mitigation measures and plant operating procedures where practical; d) Preparation of a formal noise management plan including noise monitoring program; e) For equipment with enclosures (i.e. compressor rooms) ensure door and seals are well maintained and kept closed when not in use; f) Keep plant and equipment well maintained, regular inspection and maintenance of equipment to ensure it is good working order; g) Equipment not to be operated until it is maintained or repaired; h) Regularly train workers (i.e. toolbox talks) to use equipment in ways to minimise noise; i) Operate mobile plant in a quiet, efficient manner; j) Switching off vehicles and plant when not in use; and, k) Incorporate clear signage at the site including relevant contact numbers for community enquiries.	During construction.
N2	Preparation and implementation of a CNVMP.	Prior to and during construction.
N3	During construction: a) all trucks entering or leaving the Site with loads, will have their loads covered; b) trucks associated with the project do not track dirt onto the public road network; and, c) the public roads used by these trucks are to be kept clean.	During construction.
N4	Generators are to be tested during the day period only (i.e., between the hours of 7 am and 6 pm, for a period of 15 minutes in each hour).	During operation.
N5	Generator testing is to take place using a maximum of three generators at a time.	During operation.

N6	The generators are to be packaged units which feature attenuators on the air intakes and mufflers or attenuators on the exhaust ducts. The enclosed generators are to comply with the sound power levels presented in Table 18 of the Noise Impact Assessment prepared by PWNA (Ref: 220118, dated 5 th April 2023). The recommendations are to be assessed at the detail design stage.	Prior to operation.
N7	The sound power levels of the Water Cooled Chillers and Hybrid Dry Coolers are to be at or below the levels listed in in Table 16 and Table 17, respectively, for the day, evening and night periods. The suitability of the selected units is to be assessed at the detailed design stage.	Prior to operation.
N8	Once the final concept, mechanical equipment selection and equipment layout are finalised in later stages of the project, recommended noise control measures can be finalised. That is, the above conceptual noise measures are subject to final equipment selections and layouts.	Prior to operation.
N9	The proposed road movements are predicted to comply with the Road Noise Policy and no further noise mitigation measures are recommended.	Advice only.
Aboriginal Heritage		
AH1	No further archaeological work is required in the study area due to the entire study area being assessed as having low archaeological potential. This recommendation is conditional upon Recommendation 2 to 7 within the Aboriginal Cultural Heritage Assessment (ACHAR) prepared by Biosis (ref: 37024, dated 21 st July 2022).	Advice only.
AH2	As per the <i>Aboriginal Cultural Heritage Consultation Requirements for Proponents 2010</i> (DECCW 2010a), it is recommended that the proponent provides a copy of the final report to the Aboriginal stakeholders and considers all comments received. The proponent should continue to inform these groups about the management of Aboriginal cultural heritage sites within the study area throughout the life of the project.	Prior to construction.
AH3	Heritage inductions for all site workers and contractors should be undertaken in order to prevent any unintentional harm to unexpected Aboriginal objects or sites, or Aboriginal sites or objects located within proximity to the study area. The heritage induction should include the following items: ▪ Relevant legislation. ▪ Location of identified Aboriginal heritage sites, areas of archaeological potential, and areas of archaeological sensitivity. ▪ Basic identification skills for Aboriginal and non-Aboriginal artefacts and human remains. ▪ Procedure to follow in the event of an unexpected heritage item find during construction works. ▪ Procedure to follow in the event of the discovery of human remains during construction works. ▪ Penalties and non-compliance.	Prior to construction.
AH4	Consultation with Kamilaroi Yankuntjatjara Working Group has also recommended that native landscaping be implemented for the project. EMKC ³ are to consult with the landscape architect for the project.	Prior to construction.

AH5	All Aboriginal objects and Places are protected under the <i>National Parks and Wildlife Act 1974</i> (NPW Act). It is an offence to disturb an Aboriginal site without a consent permit issued by Heritage NSW, Department of Planning and Environment (Heritage NSW). Should any unanticipated Aboriginal objects be encountered during works associated with this proposal, works must cease in the vicinity and the find should not be moved until assessed by a qualified archaeologist. If the find is determined to be an Aboriginal object the archaeologist will provide further recommendations. These may include notifying Heritage NSW and Aboriginal stakeholders.	During construction.				
AH6	Relics are historical archaeological resources of local or State significance and are protected in NSW under the <i>Heritage Act 1977</i> (Heritage Act). Relics cannot be disturbed except with a permit or exception notification. Should unanticipated relics be discovered during the course of the project, work in the vicinity must cease and an archaeologist contacted to make a preliminary assessment of the find. The Heritage Council will require notification if the find is assessed as a relic.	During construction.				
AH7	If any suspected human remains are discovered during any activity you must: 1. Immediately cease all work at that location and not further move or disturb the remains. 2. Notify the NSW Police and Heritage NSW Environmental Line on 131 555 as soon as practicable and provide details of the remains and their location. 3. Not recommence work at that location unless authorised in writing by Heritage NSW.	During construction.				
Erosion and Sediment Control						
ES1	EMKC ³ will install silt traps during the construction phase to ensure there are no pollutants or sediments that exit the site or unacceptable impacts result on surrounding vegetation or waterways.	During construction				
ES2	During construction, a Soil and Water Management Plan must be implemented to prevent scouring and the displacement of exposed soils and construction wastes such as sedimentation, hydrocarbons, litter, and other pollutants entering the receiving waterways via overland flow or the drainage network.	During construction.				
Waste Management						
WM1	EMKC ³ will ensure that all waste generated on-site during operation is classified in accordance with the Office of Environmental and Heritage's <i>Waste Classification Guidelines: Part 1 Classifying Waste</i> and disposed of to a facility that may lawfully accept the waste.	During construction.				
WM2	Avoid bonfires and burning of waste materials	During construction and ongoing.				
Dust Management						
D1	During the construction phase of the project, all reasonable and feasible measures to minimise dust generation by the project. These include: <table><tr><th>Source</th><th>Control Measures</th></tr><tr><td>General</td><td></td></tr></table>	Source	Control Measures	General		During construction.
Source	Control Measures					
General						

	Visual Inspection	Carry out visual inspections of the Subject Site during site preparatory and construction activities and employ measures (where necessary) to minimise any visible air pollution generated by the Project.	
	Regular Maintenance	Regularly inspect and perform maintenance on dust control using the latest technologies	
	Erosion Control Structures	Silt and other material removed frequently from around erosion control structures to ensure deposits do not become a dust source.	
	Vegetated Buffers	Retain existing vegetation, where appropriate and implementing additional vegetated buffers around the boundary of	
	Waste Materials	Cleared vegetation, demolition materials and other combustible waste material will not be burnt on-site. All waste materials be appropriately contained (in skips, bins) and covered during	
	Wind Blown Dust Sources		
	Disturbed Areas	Cleared vegetation, demolition materials and other combustible waste material will not be burnt on-site. - All waste materials be appropriately contained (in skips, bins) and covered during adverse weather conditions and handled in accordance with the Subject Site's Waste Management Plan.	
	Stockpile/s	- Water sprays and/or covers will be employed for material stockpiles, particularly during adverse weather conditions, to minimise dust generation. - Stockpiles will be covered overnight. - Use of chemical dust suppressants will also be used where necessary. - Fencing, bunding or shelterbelts will be used to reduce ambient wind speeds (in some areas).	

	Transportation (Trucks)	- Truck loads will be covered with tarpaulin or lid prior to transport of dusty materials by road. - Minimise truck queuing and unnecessary trips through logistical planning of materials delivery and work practices. - Reduce vehicle / truck idling times. - Maintain a following distance of trucks of 20 seconds minimum to	
		allow for dust clouds generated by the lead truck to dissipate. - Install a truck wheel wash or shaker grid to remove any loose dirt.	
	Activity Generated Dust Sources		
	Internal Road Dust	- Roads and trafficked areas will be watered down using a water-cart and/or sprinklers to minimise the generation of dust. - Haulage vehicles will be restricted to the most direct route and minimal manoeuvring areas to prevent indiscriminate driving over non-active areas. - Haul roads and hard stand areas will have designated speed limits (i.e. generally 20 km/hour). - Enforce speed limits on all on-site vehicles to minimise wheel-generated dust. - Stabilise access roads and work areas as soon as practicable to prevent or minimise windblown dust. - Maintain roads on a regular basis to ensure roads are clearly marked, pot holes and corrugations are eliminated, and extra material build up is removed or redistributed on the road. - Chemical dust suppressants used where necessary.	
	External Road Dust	- Vehicles causing dirt tracks out onto main roads would be cleaned on a regular basis to prevent this becoming an additional source of dust. - Material spillages would be cleaned up promptly.	
	Excavation	- Apply water sprays to trucks and loading points for dust suppression.	
	Loading and Dumping	- Dump heights will be minimised wherever possible (reduce to 8 m).	
	Plant and Equipment	- All plant and equipment used during activities will be maintained and operated in a proper and efficient condition. - Reduce idling times of trucks and other machinery. - Fixed plant should be located as far from local receptors as possible.	
	Excessive Dust Events		

	<table><tr><td>Internal Roads</td><td> - Employ additional water spraying / water carts. - Further reduce speed on haul roads during high winds. - Halt traffic movements. </td></tr><tr><td>Stockpiles</td><td> - Cover stockpiles of material. </td></tr><tr><td>Project Site</td><td> - Temporarily halt activities and resume once weather conditions have improved. </td></tr></table>	Internal Roads	- Employ additional water spraying / water carts. - Further reduce speed on haul roads during high winds. - Halt traffic movements.	Stockpiles	- Cover stockpiles of material.	Project Site	- Temporarily halt activities and resume once weather conditions have improved.	
Internal Roads	- Employ additional water spraying / water carts. - Further reduce speed on haul roads during high winds. - Halt traffic movements.							
Stockpiles	- Cover stockpiles of material.							
Project Site	- Temporarily halt activities and resume once weather conditions have improved.							
Biodiversity								
B1	Replacement planting of 0.26 ha PCT 850 / CPW within the subject lot should be incorporated into the landscaping plan to mitigate loss of CPW as a result of the proposal. Revegetated CPW should comprise canopy trees and groundcovers in consistency with the existing CPW. Where security constraints allow, fully-structured CPW should be incorporated.	During construction and maintenance ongoing.						
B2	Sediment and erosion control measures in accordance with Managing Urban Stormwater: Soils and Construction (Landcom 2004) to minimise impact of possible sedimentation to local drainage lines.	Prior to any clearing works and ongoing during all exposed soil stages until landscaping is completed.						
B3	Temporary fencing - Where they adjoin the development areas, the boundaries of retained vegetation shall be clearly marked out on-site to ensure their protection.	Prior to construction / clearing.						
B4	Construction activities are to be intermittently supervised on-site and monitored. All staff involved with the development shall undergo an induction and training program to reinforce the ecological and environmental objectives of the development.	Prior to and during habitat clearance and construction of services.						
B5	Prior to any habitat removal, a comprehensive search for fauna and habitat is to be undertaken to relocate any terrestrial individuals and identify any important nesting to be protected until fledging.	Immediately prior to clearance.						
B6	Management of hollows and hollow dependent fauna: ▪ The felling of hollow-bearing trees is to be conducted under the supervision of a fauna ecologist to ensure appropriate animal welfare procedures are taken, particularly for threatened species. Hollows of high quality or with fauna recorded residing within should be dismantled for relocation and all hollows should be inspected for occupation, signs of previous activity and potential for reuse. ▪ Subsequent hollows of retention value are to be relocated to nearby retained vegetation. If these are placed as on ground habitat and are not reattached to a new recipient tree then they are to be replaced with appropriately sized nest boxes affixed to a retained tree. ▪ Constructed nest boxes should as priority target recorded hollow dependent threatened species (and their prey species). Boxes should be constructed of weatherproof timber (marine ply), fasteners and external paint and appropriately affixed to a recipient tree under the guidance of a fauna ecologist.	At time of removal.						

	▪ If a threatened species is found to be occupying the hollow at the time of removal, then this hollow section is to be reattached to a recipient tree within the nearby retained vegetation as selected and directed by the fauna ecologist. The welfare and temporary holding of the residing animal(s) is at the discretion of the fauna ecologist. ▪ The relocated hollow section and nest boxes should be well secured in the recipient tree in a manner that will not compromise the current or future health of that tree. ▪ Monitoring of nest boxes and relocated hollows to identify any damage or wear.	
B7	Management of any other displaced fauna: If any fauna species, a nest or roost is located during development works, then works should cease until safe relocation can be advised by a contact fauna ecologist.	Prior to and during habitat removal / At time of removal / Adaptive management required.
B8	Timing of demolition and clearing works is to avoid critical lifecycle events although this is not necessary if appropriate targeted survey can demonstrate absence of breeding activity: ▪ Little Eagle breeding period avoid Aug–Oct ▪ Eastern Pygmy Possum avoid Oct–March	Prior to clearing.
B9	Staged clearing: to minimise impacts to native fauna species, clearing must be undertaken in the following two staged process under the supervision of a suitably qualified ecologist: ▪ The initial phase of clearing will involve clearing around important habitat features (e.g. hollow-bearing trees) and leaving these habitat features overnight to encourage any resident fauna to self-relocate; and ▪ The second stage will involve inspection of the habitat features left overnight to confirm all resident fauna have relocated ▪ The third stage will involve clearing of the habitat features. No habitat tree is to be felled without the attending ecologist providing approval to the excavator/machine operator.	Prior to and during habitat removal / At time of removal / Adaptive management required.
B10	Standard Phytophthora cinnamomi protocol applies to the cleaning of all plant, equipment, hand tools and work boots prior to delivery onsite to ensure that there is no loose soil or vegetation material caught under or on the equipment and within the tread of vehicle tyres. Any equipment onsite found to contain soil or vegetation material is to be cleaned in a quarantined work area or wash station and treated with fungicide.	During construction and ongoing.
B11	Lighting baffles on lights used during construction and road lights to direct light down and away.	During construction and ongoing.
Vegetation Management		
VM1	EMKC ³ will mark the clearance boundaries prior to commencement of construction to ensure that there is no unnecessary removal of vegetation.	Prior to construction.

VM2	The approved Tree Protection Management Plan shall be implemented, and tree protection measures must be installed and maintained, as required and to the satisfaction of the project arborist.	Prior to and during construction.
VM3	Site inductions will ensure the following training is covered: Understanding of the Tree Protection Management Plan	Prior to construction.
VM4	Inspections shall be conducted by the project arborist at several key points during the construction in order to ensure that protection measures are being adhered to during construction stages and decline in tree health or additional remediation measures can be identified.	During construction.
VM5	All earthworks within the identified tree protection zones of the trees to be retained, shall be supervised by the project arborist.	Prior to and during construction.
Ecologically Sustainable Development		
EDS1	EMKC ³ will investigate the following ESD measures in respect of: (a) Energy & Greenhouse Gas Emissions. (b) Potable water reduction. (c) Minimising waste to landfill. (d) The Indoor Environment. (e) Occupant amenity and comfort. (f) Land Use and Ecology. (g) Emissions. (h) Building Management.	Prior to construction.
Hazards and Risks		
HR1	LIFTING • Reduce and/or eliminate lifts through automated equipment: robots, hoists, conveyors, etc. • Employ two-person lifts for heavy items. • Provide training on proper lifting. • Consider introducing an employee physical exercise programs, eg stretching.	During operation.
HR2	ERGONOMIC HAZARDS • Ensure the facility is fitted throughout with height appropriate tools and tables. • Provide practical employee rotation and micro-breaks where relevant. • Provide employees with training programs with regular Refresher Training on body ergonomics, relationship between body movement and injury, etc. • Encourage a strong culture of reporting Near Misses.	During operation.
HR3	WALKING SURFACES • Keep floors as dry and clean as possible – avoid wet and/or slippery floors. • Make appropriate footwear available for relevant employees. • Eliminate all Trip Hazards (eg hoses). • Avoid tools being left “lying around”. • Eliminate improperly stacked items.	During operation.
HR4	WORKSPACES • Keep workspaces clean, orderly and sanitary. • Keep aisles clear and free of obstructions. • Provide appropriate marking of floors, aisles, etc (eg walking arrows for two-way pathways). • Clean up spills immediately. • Conduct regular (weekly) walk-through of all workspace areas to identify and eliminate hazards.	During operation.
HR5	FALL PROTECTION • Maintain elevated work platforms in a safe manner (handrails with midrail, toeboard, guard openings with swing gate, etc). • Provide Safe Stairways, ie with a comfortable angle (30°-50°), appropriate width, slip-resistant tread, railings, etc.	During operation.
HR6	CONFINED SPACES (where relevant) • Ensure that only employees who have received Confined Space Training and are “Permitted” are assigned to work in confined spaces. • Ensure confined spaces are large enough for the relevant work to be performed safely. • Use appropriate “Permit Space” markings for all confined spaces.	During operation.

HR7	MOBILE EQUIPMENT etc • Ensure that only employees who have received training are allowed to operate mobile equipment and conduct regular safety check to ensure operators are using the equipment properly, eg wearing high vis vests, wearing seat belts, lowering a load before moving, never exceeding the load limit of the vehicle, not speeding, etc. • Implement a regular maintenance and inspection procedure of all mobile equipment – daily if operating on a 24-hour shift basis. • Implement a regular inspection procedure of all associated equipment, eg pallets.	During operation.
HR8	CHEMICAL SAFETY • Conduct induction and regular refresher training in the safe handling and storage of hazardous chemicals. • Ensure Material Safety Datasheets are kept close by each chemical stored on site. • Conduct regular inspections of all chemical cabinets, containment pallets, signage, etc. • Ensure incompatibles are kept separate, eg acids/bases.	During operation.
HR9	PPE (Safety Glasses, Goggles, Gloves, Steel Toed Boots, etc) • Conduct induction and regular refresher training in the selection, use, maintenance and limitations of PPE, and when to change • Conduct specific training for hearing protection and respirators • Head injuries are a common hazard: provide “Bump Caps” for relevant employees. • Emphasize to employees that PPE is the “last line of defense” and that Hazard and Risk Assessments, Training, Near Miss Reporting, etc, are all aimed at minimising the need for PPE.	During operation.
HR10	THERMAL • Ensure all thermal controls are fit-for-purpose: “hot” pipe insulation, labelling of hot surfaces, written procedures for employees working in areas that contain thermal hazards, provision and use of appropriate PPE (safety glasses, gloves, etc).	During operation.
HR11	SAFETY CULTURE • Create and promote a strong Safety Culture amongst all employees. • Implement a Safety Committee and conduct Safety Meetings/Inspections appropriate to the size of the operation. • Actively seek participation from staff in reporting accidents and/or near misses to develop recommendations for improvement. • Develop an accident statistics report with measurable targets.	During operation.
HR12	JOB HAZARD ANALYSIS and PROCESSES • Assess all operational tasks and prioritise those with high potential risk. • Conduct a hazard analysis and develop safe work practices for each task or “job”. • Document the above and provide training for all relevant employees. • Regularly review safe work practice procedures and update as required.	During operation.

APPENDIX 3 SENSITIVE RECEIVER LOCATIONS



Figure 3: Residential Receiver Location

APPENDIX 4 BIODIVERSITY ECOSYSTEM AND SPECIES CREDITS

Table 3: Ecosystem credits required to be retired – like-for-like

PCT	TEC	Number of ecosystems credits	IBRA sub-regions from which the credit can be sourced
3319, 3320	Cumberland Plain Woodland in the Sydney Basin Bioregion	7	Cumberland, Burragorang, Pittwater, Sydney Cataract, Wollemi and Yengo; or Any IBRA subregion that is within 100 kilometers of the outer edge of the impacted site.

Table 4: Species credits required to be retired – like-for-like

Impacted Species credit species	Number of species credits	IBRA sub-regions from which the credit can be sourced
<i>Cercartetus nanus</i> / Eastern Pygmy-possum	6	Any in NSW
<i>Hieraaetus morphnoides</i> / Little Eagle	4	Any in NSW
<i>Marsdenia viridiflore</i> ssp. <i>Viridiflora</i> / Marsdenia	6	Any in NSW

APPENDIX 5 INCIDENT NOTIFICATION AND REPORTING REQUIREMENTS

WRITTEN INCIDENT NOTIFICATION REQUIREMENTS

1. A written incident notification addressing the requirements set out below must be submitted to the Planning Secretary via the Major Projects website within seven days after the Applicant becomes aware of an incident. Notification is required to be given under this condition even if the Applicant fails to give the notification required under condition C10 or, having given such notification, subsequently forms the view that an incident has not occurred.
2. Written notification of an incident must:
 - (a) identify the development and application number;
 - (b) provide details of the incident (date, time, location, a brief description of what occurred and why it is classified as an incident);
 - (c) identify how the incident was detected;
 - (d) identify when the applicant became aware of the incident;
 - (e) identify any actual or potential non-compliance with conditions of consent;
 - (f) describe what immediate steps were taken in relation to the incident;
 - (g) identify further action(s) that will be taken in relation to the incident; and
 - (h) identify a project contact for further communication regarding the incident.

INCIDENT REPORT REQUIREMENTS

3. Within 30 days of the date on which the incident occurred or as otherwise agreed to by the Planning Secretary, the Applicant must provide the Planning Secretary and any relevant public authorities (as determined by the Planning Secretary) with a detailed report on the incident addressing all requirements below, and such further reports as may be requested.
4. The Incident Report must include:
 - (a) a summary of the incident;
 - (b) outcomes of an incident investigation, including identification of the cause of the incident;
 - (c) details of the corrective and preventative actions that have been, or will be, implemented to address the incident and prevent recurrence; and
 - (d) details of any communication with other stakeholders regarding the incident.